

24STCV17735 24STCV17735

County: los-angeles

Division: Civil Law and Motion

Department: 408

Hearing date: 2026-08-26

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C408%2C08%2F26%2F2026

Source SHA-256: 2d149247181cba01bcc853241b6161878dc38f70ed7b36c2c253d40e3b091abf

Case Number: 24STCV17735 Hearing Date: August 26, 2026 Dept: 408

1.

Plaintiff Shiloh

Parker's Motion to Compel Further

Responses to Special Interrogatories, Set Two, as to Defendant Jonathan

Everett Mills is DENIED.

2.

Plaintiff Shiloh

Parker's Motion to Compel Further

Responses to Requests for Production of Documents, Set Four, as to Defendant Jonathan

Everett Mills is DENIED.

3.

Plaintiff Shiloh

Parker's Motion to Compel Further

Responses to Requests for Production of Documents, Set Three, as to Defendant Jonathan

Everett Mills is DENIED.

4.

Plaintiff Shiloh

Parker's Motion to Compel Further

Responses to Special Interrogatories, Set Four, as to Defendant Jonathan

Everett Mills is DENIED.

5.

Plaintiff Shiloh

Parker's Motion to Compel Further

Responses to Special Interrogatories, Set Three, as to Defendant Jonathan

Everett Mills is DENIED.

6.

Plaintiff Shiloh

Parker's Motion to Compel Further Responses to Special Interrogatories, Set

Five; General Interrogatories, Set Two; and Requests for Production of

Documents, Set Five, as to Defendant Jonathan Everett Mills is DENIED.

7.

Plaintiff Shiloh

Parker's Motion to Compel Further

Responses to Requests for Admissions, Set Two, as to Defendant Jonathan

Everett Mills is DENIED.

8.

Plaintiff Shiloh

Parker's Motion to Compel Further

Responses to Requests for Production of Documents, Set Six, as to Defendant Jonathan

Everett Mills is DENIED.

9.

Plaintiff Shiloh

Parker's Motion to Compel Further

Responses to Privilege Log as to Requests for Production of Documents, Set Two,

as to Defendant Jonathan Everett Mills is DENIED.

10.

Requests for

Sanctions are DENIED.

I.

BACKGROUND

On July 16, 2024, Plaintiff Shiloh Parker ("Plaintiff") filed a complaint

against Defendants Jonathan Everett Mills ("Mills") and Durden and Mills, P.C.

("Durden") alleging causes of action for:

1.

Civil Extortion;

2.

Civil Conspiracy;

3.

Abuse of Process; and

4.

Unfair Business Practice.

On August 5, 2024, Plaintiff filed a First Amended Complaint ("FAC")

against Defendants Mills, Durden, Robert John Lamb ("Lamb"), Daniel Freeland

("Freeland"), and Enrique Rivera ("Rivera") alleging causes of action for:

1.

Civil Extortion;

2.

Abuse of Process;

3.

Malicious Prosecution;

4.

Intentional Infliction of Emotional Distress;

5.

Negligent Infliction of Emotional Distress; and

6.

Unfair Business Practice.

On February 27, 2024,

Plaintiff filed a Second Amended Complaint ("SAC").

On June 12, 2025, pursuant to an oral request by Plaintiff, the court

dismissed Freeland and Rivera from Plaintiff's SAC without prejudice.

On July 28, 2025, Plaintiff filed a Third Amended Complaint ("TAC")

alleging causes of action for:

1.

Civil Extortion;

2.

Abuse of Process;

3.

Malicious Prosecution;

4.

Unfair Business Practice; and

5.

Slander Per Se.

On October 13, 2025, the court denied in part Mills and Durden's Motion

to Quash Service of Summons and Complaint as to Mills and granted in part as to

Durden as it had not been served with Plaintiff's TAC; denied as moot

Plaintiff's Motion to Continue Specially Appearing Defendants' Motion to Quash

Service of Summons; and denied as moot Plaintiff's Motion for Leave to Conduct

Jurisdictional Discovery as to Specially Appearing Defendants.

On January 20, 2026, the

court granted Plaintiff's Motion for Leave to File a Fourth Amended Complaint,

overruled Mills' Demurrer, and

denied the Motion to Strike to

Plaintiff's TAC as moot.

On

January 20, 2026, Plaintiff filed a Fourth Amended Complaint ("4AC") against

Mills and Lamb ("Defendants") alleging causes of action for:

1.

Civil Extortion;

2.

Abuse of Process; and

3.

Defamation/Slander Per Se.

On February 19, 2026, Plaintiff filed this Motion for Service Costs and

Fees. On March 26, 2026, Mills filed an opposition. On April 1, 2026, Plaintiff

filed a reply.

On March 5, 2026, the court denied Plaintiff's Motion to Compel Further Responses to Form Interrogatories, Set One; denied in part and granted in part Plaintiff's Motion to Compel Further Responses to Special Interrogatories, Set One; denied Mills' Motions for Protective Order; and denied Plaintiff's Motion for Sanctions.

On April 9, 2026, the court overruled Mills' Demurrer and denied the Motion to Strike as to Plaintiff's 4AC.

On April 13, 2026, Plaintiff filed this Motion to Compel Further Responses to Privilege Log as to Requests for Production of Documents, Set Two, and Request for Sanctions ("Privilege Log Motion") as to Mills. On June 11, 2026, Mills filed an opposition. On June 16, 2026, Plaintiff filed a reply.

On April 17, 2026, Mills filed an answer to Plaintiff's 4AC.

On May 18, 2026, Plaintiff filed this Motion to Compel Further Responses to Special Interrogatories, Set Two, and Request for Sanctions ("SROGs Two Motion"); Motion to Compel Further Responses to Requests for Production of Documents, Set Four, and Request for Sanctions ("RPDs Four Motion"); and Motion to Compel Further Responses to Requests for Production of Documents, Set Three, and Request for Sanctions ("RPDs Three Motion") as to Mills. On July 16 and 22, 2026, Mills filed oppositions. On July 27, 2026, and August 3, 2026, Plaintiff

filed replies.

On June 1, 2026, Plaintiff filed this Motion to Compel Further Responses to Special Interrogatories, Set Four, and Request for Sanctions (“SROGs Four Motion”); and Motion to Compel Further Responses to Special Interrogatories, Set Three, and Request for Sanctions (“SROGs Three Motion”) as to Mills. On June 10 and 11, 2026, Mills filed oppositions. On July 17, 2026, Plaintiff filed replies.

On July 1, 2026, Plaintiff filed this Motion to Compel Further Responses to Special Interrogatories, Set Five; General Interrogatories, Set Two; and Request for Sanctions (“SROGs Five Motion”) as to Mills. On August 13, 2026, Mills filed an opposition. On August 17, 2026, Plaintiff filed a reply.

On July 17, 2026, Plaintiff filed this Motion to Compel Further Responses to Requests for Sanctions, Set Two, and Request for Sanctions (“RFAs Two Motion”); and Motion to Compel Further Responses to Requests for Production of Documents, Set Six, and Request for Sanctions (“RPDs Six Motion”) as to Mills. On August 12 and 13, 2026, Mills filed oppositions. On August 17, 2026, Plaintiff filed a reply to RPDs Six Motion. As of August 24, 2026, no reply has been filed to RFAs Two Motion.

On August 5, 2026, the court overruled Plaintiff’s Demurrer to Mills’ answer to Plaintiff’s 4AC.

I.

MOTION TO COMPEL FURTHER RESPONSES TO

SPECIAL INTERROGATORIES, SET TWO

A.

Legal

Standard

On receipt of a response to form interrogatories,

special interrogatories, and/or demand requests, the propounding and/or

demanding party “may move for an order compelling further response” if: (1) the

response is evasive or incomplete; (2) the representation of inability to

comply is inadequate, incomplete, or evasive; or (3) the objection is without

merit or too general. (Code Civ. Proc., §§ 2030.300, subd. (a); 2031.310, subd.

(a).)

The moving party must demonstrate a “reasonable and

good faith attempt” at an informal resolution of each issue presented. (Code

Civ. Proc., §§ 2016.040; 2033.290, subd. (b)(1).) “In lieu of a separate

statement required under the California Rules of Court, the court may allow the

moving party to submit a concise outline of the discovery request and each

response in dispute.” (Code Civ. Proc., § 2033.290, subd. (b)(2).)

Notice of the motion must be provided “within 45 days

of the service of the verified response, or any supplemental verified response,

or any specific later date to which the requesting party and the responding

party have agreed in writing . . .” (Code Civ. Proc., § 2030.300, subd. (c).)

The responding party has the burden of justifying the objections to the

requests. (Coy v. Superior Court (1962) 58 Cal.2d 210, 220-221.)

The court must impose

monetary sanctions against any party who unsuccessfully makes or opposes a

motion to compel further unless the court finds that the one subject to

sanction acted with substantial justification or that other circumstances make

the imposition of sanctions unjust. (Code Civ. Proc., § 2030.300, subd. (d);

Code Civ. Proc., § 2031.310, subd. (h).)

B.

Discussion

Plaintiff seeks to compel Mills to provide further responses to Special

Interrogatories, Set Two. (SROGs Two Motion, at p. 2.) Mills provided initial

responses on April

1, 2026, to Plaintiff’s SROGs Set Two. (Parker Decl., ¶ 2, Exh. A.) Plaintiff

specifically seeks further responses to SROGs Nos. 8-11, which request the

following information:

SPECIAL

INTERROGATORY NO. 8: Please define the word “DEFUNCT” as you used in Exhibit A,

attached to this request.

SPECIAL

INTERROGATORY NO. 9: Please identify all documents that relate to you

“defuncting” the email address at issue in Exhibit A.

SPECIAL

INTERROGATORY NO. 10: Please identify the full name (first and last) of the

persons who were involved in “defuncting” the email address at issue in Exhibit

A.

SPECIAL

INTERROGATORY NO. 11: Please identify the process you used to “defunct” the

email address at issue in Exhibit A.

(Opp.,

at pp. 3-4.)

In opposition, Mills contends

that Plaintiff’s Set Two SROGs included an exhibit of a meet and confer letter

sent to Plaintiff regarding her response to Mills’ SROG No. 46 seeking the

contact information of Plaintiff’s witness, Matthew Pearson (“Pearson”). (Id.,

at p. 3, Exh. 1.) Such letter stated that Plaintiff’s “response is

incomplete. You only provide an e-mail in response, which seems to be defunct.

You are required to provide Matthew Pearson's address and phone number.” (Ibid.) Mills

argues that Plaintiff SROGs Nos. 8-11 seek to invade defense counsel's work

product and

attorney-client privileges as Plaintiff seeks information about how defense

counsel determined the email address for Pearson was “defunct”. (Id., at

pp. 3-4.) Accordingly, Mills objected to such SROGs with objections. (Ibid.)

The court finds that Mills provided

sufficient responses to SROGs Nos. 8-11. The objections asserted by Mills are

not without merit or too general. Plaintiff appears to argue that such

discovery requests are necessary as they relate to multiple motions pending

before the court and as to Mills' purported spoliation and fabrication of

evidence. (Reply, at p. 3.) However, in actuality, such interrogatories seek

information that is irrelevant to Plaintiff's claims and misuses the discovery

process.

Accordingly, the motion is denied. The

court similarly denies the parties' requests for sanctions.

II.

MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS

FOR PRODUCTION OF DOCUMENTS, SET FOUR

A.

Legal

Standard

See Section II(A) above.

B.

Discussion

Plaintiff seeks to compel Mills to provide further responses to Requests

for Production of Documents, Set Four. (RPDs Four Motion, at p. 2.) Mills

provided initial responses on April 1, 2026, to Plaintiff's RPDs Set Four. (Parker Decl., ¶ 2,

Exh. A.) Plaintiff specifically seeks further responses to RPDs Nos. 18-19,

which request the following information:

DOCUMENT

REQUEST NO. 18: Any and all text messages, e-mails, notes, memoranda, or other

DOCUMENTS that RELATE OR PERTAIN TO any and all COMMUNICATIONS by, between YOU

and Enrique Rivera between 2020 and now.

DOCUMENT

REQUEST NO. 19: Any and all text messages, e-mails, notes, memoranda, or other

DOCUMENTS that RELATE OR PERTAIN TO any and all COMMUNICATIONS by, between YOU

and Robert Lamb between 2020 and now.

(Opp., at p. 4.)

In

response to RPD No. 18, Mills provides, along with various objections, that

“Responding Party has conducted a diligent search and reasonable inquiry in an effort to comply with this request. Other than documents withheld on the basis of confidential attorney-client and joint-defense communications or attorney work product, Responding Party cannot comply at this time because after a reasonable, good faith effort and diligent inquiry, Responding Party has determined it does not have possession, custody, or control of any non-privileged documents responsive to this request, either because none are known to exist or do not exist at this time. See Responding Party’s Amended Privilege Log produced herein.” (Id., at pp. 4-5.) In response to RPD

No. 19, Mills provides that “Responding Party has conducted a diligent search and reasonable inquiry in an effort to comply with this request. Responding Party cannot comply at this time because after a reasonable, good faith effort and diligent inquiry, Responding Party has determined it does not have possession, custody, or control of any non-privileged documents responsive to this request, either because none are known to exist or do not exist.” (Ibid.)

The

court finds that Mills provided code-compliant responses to RPDs Nos. 18-19. Such responses state that Mills is unable to comply because any responsive documents do not exist. (Code Civ. Proc., § 2031.230.) Moreover, Mills submitted a

privilege log as to the documents sought which are covered by privilege to support the privilege objections. (Code Civ. Proc., § 2031.240, subd. (b)-(c).)

Accordingly,

the motion is denied. The parties' requests for sanctions are denied for the same reasons provided above.

III.

MOTION TO COMPEL FURTHER RESPONSES TO
REQUESTS FOR PRODUCTION OF DOCUMENTS, SET THREE

A.

Legal

Standard

See Section II(A) above.

B.

Discussion

Plaintiff seeks to compel Mills to provide further responses to Requests for Production of Documents, Set Three. (RPDs Three Motion, at p. 2.) Mills provided initial responses on April 1, 2026, to Plaintiff's RPDs Set Three. (Parker Decl., ¶ 2, Exh. A.) Plaintiff specifically seeks further responses to RPDs Nos. 10-13, which request the following information:

DOCUMENT REQUEST

NO. 10: All documents you used to define the word "DEFUNCT" as you used in Exhibit A, attached to this request.

DOCUMENT REQUEST

NO. 11: All documents that relate to "defuncting" the email address at issue in Exhibit A.

DOCUMENT REQUEST

NO. 12: All documents showing the full name (first and last) of the persons who were involved in "defuncting" the email address at issue in Exhibit A.

DOCUMENT REQUEST

NO. 13: All documents that relate to the process you used to "defunct" the email address at issue in Exhibit A.

As an initial matter, the court reiterates the reasoning provided as to Plaintiff's SROGs Two Motion based on the interrogatories seeking the same information. The court finds that Mills' objections to RPDs Nos. 10-13 based on attorney-client and work product privileges are not without merit or too general.

Accordingly,

the motion and the parties' requests for sanctions are denied as noted above.

IV.

MOTION TO COMPEL FURTHER RESPONSES TO

SPECIAL INTERROGATORIES, SET FOUR

A.

Legal

Standard

See Section II(A) above.

B.

Discussion

Plaintiff seeks to compel Mills to provide further responses to Special

Interrogatories, Set Four. (SROGs Four Motion, at p. 2.) Mills provided initial

responses on April

15, 2026, to Plaintiff's SROGs Set Four. (Parker Decl., ¶ 2, Exh. A.)

Plaintiff specifically seeks further responses to SROGs Nos. 27-28, which

request the following information:

SPECIAL

INTERROGATORY NO. 27: Please identify how many documents and/or communications

you are withholding as it relates to Daniel Freeland, identified in your

privilege log attached to this request as Exhibit A.

SPECIAL

INTERROGATORY NO. 28: Identify the name, address, and/or telephone number of

each individual who KNOWS or HAS any diagram, reproduction, or model of any place or thing (except for items developed by expert witnesses covered by Code of Civil Procedure sections 2034.210- 2034.310) concerning any of the allegations and/or events detailed in Plaintiff's operative complaint. For each item state: (a) the type (i.e. diagram, reproduction, or model) and (b) the subject matter.

(Separate

Statement, at pp. 2, 5.)

In response to SROGs Nos. 27-28, Mills

provides, among various objections, that "[n]one are known to responding party." (Opp., at p. 3.)

The court finds that Mills provided

code-compliant responses to SROGs Nos. 27-28. (Code Civ. Proc., § 2030.220 ["If

the responding party does not have personal knowledge sufficient to respond

fully to an interrogatory, that party shall so state, but shall make a

reasonable and good faith effort to obtain the information by inquiry to other

natural persons or organizations, except where the information is equally

available to the propounding party."].) The court cannot compel Mills to

provide further responses when any responsive information is not known and

Mills explicitly stated as such.

Accordingly, the motion is denied. The

parties' requests for sanctions are denied for the same reasons provided above.

V.

MOTION TO COMPEL FURTHER RESPONSES TO

SPECIAL INTERROGATORIES, SET THREE

A.

Legal

Standard

See Section II(A) above.

B.

Discussion

Plaintiff seeks to compel Mills to provide further responses to Special

Interrogatories, Set Three. (SROGs Three Motion, at p. 2.) Mills provided

initial responses on April

15, 2026, to Plaintiff's SROGs Set Three. (Parker Decl., ¶ 2, Exh. A.)

Plaintiff specifically seeks further responses to SROGs Nos. 12-26 which

request Mills to "identify

how many documents and/or communications you are withholding as it relates to"

Daniel Freeland, Marcus Dong, Daniel Cohen, Christopher Reeder, Marcus Tippens,

Anthony Reeder, Duncan McCreary, Kim Brunner, Daisy Gutierrez, Haley

Freiberger, Kyle Freiberger, Ira Gerzog, Sofia Torrez, Howard J. Franco, and Jonathan Mills, respectively, identified in the privilege log provided. (See Separate Statement.)

In

response to SROGs Nos. 12-26, Mills provides, among various objections, that “[a] compilation, abstract, audit or summary of the Responding Party’s records is necessary in order to answer the interrogatory, and no such compilation, etc. presently exists, and the burden or expense of preparing or making it would be substantially the same for the interrogating party as for the Responding Party. CCP § 2030.230. Responding Party refers Plaintiff to Responding Party’s amended privilege log.” (Opp., at pp. 4-5.)

Code

of Civil Procedure section 2030.230 provides that “[i]f the answer to an interrogatory would necessitate the preparation or the making of a compilation, abstract, audit, or summary of or from the documents of the party to whom the interrogatory is directed, and if the burden or expense of preparing or making it would be substantially the same for the party propounding the interrogatory as for the responding party, it is a sufficient answer to that interrogatory to refer to this section and to specify the writings from which the answer may be derived or ascertained.” (Code Civ. Proc., § 2030.230.)

The

court finds that Mills provide sufficient code-compliant responses to SROGs

Nos. 12-26 invoking Section 2030.230 and providing Plaintiff with an amended

privilege log for Mills to ascertain a response.

Accordingly,

the motion is denied. The parties' requests for sanctions are denied as noted

above.

VI.

MOTION TO COMPEL FURTHER RESPONSES TO

SPECIAL INTERROGATORIES, SET FIVE, GENERAL INTERROGATORIES, SET TWO, AND

REQUESTS FOR PRODUCTION OF DOCUMENTS, SET FIVE

A.

Legal

Standard

See Section II(A) above.

B.

Discussion

Plaintiff seeks to compel Mills to provide further responses to Special

Interrogatories, Set Five, General Interrogatories, Set Two, and Requests for

Production of Documents, Set Five. (SROGs Five Motion, at pp. 2-3.) Mills

provided initial responses on May 20, 2026, to each of the three sets of discovery at issue. (Parker Decl., ¶ 2, Exh. A.) Plaintiff specifically seeks further responses to SROGs Nos. 29-32; GROGs Nos. 12.1, 12.2, 12.3, 12.5, 13.1, 13.2, and 15.1; and RPD No. 20. (See Separate Statement.)

As

an initial matter, the court admonishes Plaintiff for combining three separate sets of discovery into a single motion. Nevertheless, the court considers the motion on the merits in an effort to avoid additional discovery disputes.

1.

SROGs Set Five

SROGs Nos. 29-32 request that Mills identify documents and communications between Mills and Robert Lamb or Enrique Rivera being withheld and provide certain information as to each identified document or communication. (Separate Statement, at pp. 2-12.) In response to SROGs Nos. 29-32, Mills provides, among various objections, to “[s]ee attached privilege log. None known.” (Ibid.)

The

court finds that Mills provide sufficient, code-compliant responses to SROGs Nos. 29-32. (Code Civ. Proc., § 2030.220.) The court cannot compel Mills to provide further responses when any responsive information is not known, Mills

explicitly stated as such, and Mills provides a privilege log to support the
privilege objections.

2.

GROGs Set Two

GROGs Nos. 12.1, 12.2, 12.3, 12.5, 13.1, 13.2, and 15.1, request Mills to

identify

witnesses' names and contact information; identify evidence in Mills'

possession; state whether Mills has conducted surveillance; and identify

material allegations and defenses in Mills' answer. (Separate Statement, at pp.

14-23.)

In

response, Mills objects to such interrogatories on the basis that such requests

were previously asked and answered and Plaintiff fails to seek updated

information in compliance with Code of Civil Procedure section 2030.070. (Opp.,

at p. 3.)

Section 2030.070 provides that "a party may propound a supplemental

interrogatory to elicit any later acquired information bearing on all answers

previously made by any party in response to interrogatories." (Code Civ. Proc.,

§ 2030.070, subd. (a).) In reply, Plaintiff does not dispute that such

interrogatories were previously asked and answered. As such, Mills provides

sufficient, code-compliant responses asserting Section 2030.070 noncompliance.

3.

RPDs Set Five

RPD No. 20 requests Mills to provide “[a] copy of the transcript for the hearing on April 9, 2026 prepared by Christopher Fedoroff.” (Separate Statement, at p. 13.) In response, Mills identified possession of the transcript and offered to provide it if plaintiff shared the cost. (Opp., at pp. 2-3.)

In

opposition, Mills provides that Plaintiff has refused to share the costs of the transcript. (Opp., at pp. 2-3.) Moreover, Mills argues that the transcript is not a document that must be produced as part of discovery. (Ibid.)

The

court agrees that a hearing transcript for the instant action is not a document subject to discovery or that necessitates a discovery request. Whether Mills agrees to share the transcript and chooses to assume the total related costs is not a matter for the court to decide through the instant motion.

Accordingly,

the motion is denied. The parties’ requests for sanctions are denied as noted above.

VII.

MOTION TO COMPEL FURTHER RESPONSES TO

REQUESTS FOR ADMISSIONS, SET TWO

A.

Legal

Standard

See Section II(A) above.

B.

Discussion

Plaintiff seeks to compel Mills to provide further responses to Requests

for Admissions, Set Two. (RFAs Two Motion, at p. 2.) Mills provided initial

responses on April

29, 2026, and supplemental responses on June 2, 2026. (Parker Decl., ¶ 2,

Exhs. A-B.) Plaintiff specifically seeks further responses to RFA No. 10 which

request Mills to “[a]dmit

that you have mortgage insurance on the property with the address of 1050

Colorado Bend, Parcel COIT 003D.” (Separate Statement, at p. 2.)

In

response to RFA No. 10, Mills objected to the request based on privacy

privilege. (Opp., at p. 5.) Mills also argues that the request violates Civil

Code section 3295(c) which provides that no pretrial discovery by the plaintiff shall be permitted with respect to the evidence about the financial condition of the defendant, unless the court enters an order permitting such discovery. (Ibid.)

The

court finds that Mills provided a sufficient, code-compliant response to RFA No.

10 asserting the privacy privilege and violation of Section 3295. (Civ. Code, §

3295.) Accordingly, the motion is

denied. The parties' requests for sanctions are denied as noted above.

VIII. MOTION TO COMPEL

FURTHER RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS, SET SIX

A.

Legal

Standard

See Section II(A) above.

B.

Discussion

Plaintiff seeks to compel Mills to provide further responses to Requests

for Production of Documents, Set Six. (RPDs Six Motion, at p. 2.) Mills

provided initial responses on April 29, 2026, to Plaintiff's RPDs Set Six, and

supplemental responses on June 2, 2026. (Parker Decl., ¶ 2, Exhs. A-B.)

Plaintiff specifically seeks further responses to RPD No. 21, which request the following information:

A copy of your

mortgage insurance for the property with the address of 1050 Colorado Bend

Watkinsville, Georgia 30677. Mortgage Insurance means an insurance policy such

as a Private Mortgage Insurance (PMI) for conventional loans and Mortgage

Insurance Premiums (MW) for FHA, or others.

(Separate

Statement, at p. 2.)

In response to RPD No. 21, Mills objected

to the interrogatory based on privacy privilege. (Opp., at p. 4.) Mills also

argues that the request violates Civil Code section 3295(c). (Ibid.)

The

court again finds that Mills provided a sufficient, code-compliant response to

RPD No. 21 asserting the privacy privilege and violation of Section 3295. (Civ.

Code, § 3295.) Accordingly, the motion

is denied. The parties' requests for sanctions are denied as noted above.

IX.

MOTION TO COMPEL FURTHER RESPONSES TO PRIVILEGE

LOG

C.

Legal

Standard

See Section II(A) above.

D.

Discussion

Plaintiff seeks to compel Mills to provide further responses to the privilege log provided as to Plaintiff's Requests for Production of Documents, Set Two. (Privilege Log Motion, at p. 2.) Plaintiff argues that Mills' privilege log is deficient as it fails to list separately every communication Mills is withholding; it fails to provide a description of the content of each withheld communication; and it fails to specify the nature of the relationship between the persons identified in the log and Mills. (Ibid.)

In

opposition, Mills argues that an amended privilege log was produced which includes the documents date of preparation/time; authors and recipients; description of withheld documents/information; and grounds for withholding.

(Opp., at pp. 3-4.)

Upon

a review of the copies of the privilege logs provided in response to

Plaintiff's RPDs Set Two, the court finds that Mills provided a code-compliant

privilege log which includes the information required to support the

withholding of a responsive document based on privilege. (Parker Decl., ¶¶ 2-4,

Exhs. B-D.)

Accordingly,

the motion is denied. The parties' requests for sanctions are denied as noted

above.

II.

CONCLUSION[1]

1.

Plaintiff Shiloh Parker's Motion to Compel

Further Responses to Special Interrogatories, Set Two, as to Defendant Jonathan

Everett Mills is DENIED.

2.

Plaintiff Shiloh Parker's Motion to Compel

Further Responses to Requests for Production of Documents, Set Four, as to

Defendant Jonathan Everett Mills is DENIED.

3.

Plaintiff Shiloh Parker's Motion to Compel

Further Responses to Requests for Production of Documents, Set Three, as to

Defendant Jonathan Everett Mills is DENIED.

4.

Plaintiff Shiloh Parker's Motion to Compel

Further Responses to Special Interrogatories, Set Four, as to Defendant

Jonathan Everett Mills is DENIED.

5.

Plaintiff Shiloh Parker's Motion to Compel

Further Responses to Special Interrogatories, Set Three, as to Defendant

Jonathan Everett Mills is DENIED.

6.

Plaintiff Shiloh Parker's Motion to Compel

Further Responses to Special Interrogatories, Set Five; General

Interrogatories, Set Two; and Requests for Production of Documents, Set Five,

as to Defendant Jonathan Everett Mills is DENIED.

7.

Plaintiff Shiloh Parker's Motion to Compel

Further Responses to Requests for Admissions, Set Two, as to Defendant Jonathan

Everett Mills is DENIED.

8.

Plaintiff Shiloh Parker's Motion to Compel

Further Responses to Requests for Production of Documents, Set Six, as to

Defendant Jonathan Everett Mills is DENIED.

9.

Plaintiff Shiloh Parker's Motion to Compel

Further Responses to Privilege Log as to Requests for Production of Documents,

Set Two, as to Defendant Jonathan Everett Mills is DENIED.

10. Requests for Sanctions are DENIED.

[1] The

court considers the papers on the merits despite any purported procedural

deficiencies with the meet and confer process or timeliness of the oppositions.